

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/18/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0008299

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      AMERICAN EXPRESS  
NATIONAL BANK

vs.

DEFENDANT:    DIANNE HARTNETT

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NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

**RULING**

Plaintiff American Express National Bank’s unopposed motion for summary judgment is GRANTED. Plaintiff established the loan agreement, performance by funding, Defendant’s default and acceleration, and damages of \$85,227.30. (Code Civ. Proc., § 437c, subds. (c), (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

***Facts***

Plaintiff filed this action on November 5, 2025, against defendant Dianne Hartnett (“Defendant”) alleging a cause of action for breach of contract.

Defendant applied to Plaintiff for a loan and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Truth in Lending disclosure agreement, including the terms of the loan and acceptance of the agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-7.) Defendant used the funds, and Plaintiff complied with its obligations under the Agreement. (SS Nos. 3, 4.) There is no record of Defendant asserting an objection to the amount of the balance due and owing on the monthly statements that were provided to the Defendant, reflecting all debts and credits to Defendant’s account. (SS Nos. 4-5.)

Defendant defaulted on the loan, and Plaintiff accelerated the account balance so that the entire unpaid balance on the account became immediately due and payable. (SS No. 7.) Defendant owes Plaintiff \$85,227.30 on the principal balance. (SS No. 7.)

***Standard for Summary Judgment***

A plaintiff moving for summary judgment meets his or her burden of proof by showing there is no defense to each cause of action by proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [“summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by defendant as well as prove each element of his own cause of action. . . . All that the plaintiff need do is to ‘prove [ ] each element of the cause of action’ ”].) Once a plaintiff meets this burden, the burden shifts to defendant “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c(p)(1).)

### ***Discussion***

Plaintiff claims it is entitled to summary judgment against Defendant on the grounds that there is no defense to this action. (Notice, pp. 2:4-8.) Plaintiff alleges a breach of contract against Defendant.

The elements of a breach of contract cause of action are: (1) the existence of a contract; (2) the plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) damage to plaintiff resulting from the breach. (*State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449 (“ReadyLink”).)

Here, Plaintiff proffers evidence of business loan agreement, that Plaintiff performed its obligation under the terms of the agreement by extending funds and that Defendant failed to honor the obligations under the terms the loan agreement by failing to pay the sums owed to Plaintiff, and that Plaintiff is owed a sum certain in the amount of \$85,227.30. (SS Nos. 1-7.)

The Court finds that Plaintiff has met its burden establishing each element of its cause of action for breach of contract. (SS No. 1-7.) Without controverting evidence, the Court GRANTS Plaintiff's motion for summary judgment.

***Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court.***

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/18/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0008333

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF:      TIMOTHY ROMPEL

vs.

DEFENDANT:   PRIME SKYLARK, LLC ET  
AL

NATURE OF PROCEEDINGS: DEMURRER

**RULING**

Defendants' demurrer to the Seventh Cause of Action (Larkspur Municipal Code § 6.30.030 et seq.) is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiff must plead the alleged 'just cause' deficiency and tie Defendants' conduct to an intent to obtain possession, with statutory particularity.

**I. Allegations in Plaintiff's First Amended Complaint**

Plaintiff Timothy Rompel alleges that he is a 75 year old disabled veteran who was a residential tenant at Unit 14 of Defendants' multi-unit property on Skylark Drive in Larkspur. Plaintiff had resided in his unit, which was under rent-control, since August 1999. In July 2024, a new tenant moved into Unit 16, located directly below Plaintiff's unit, and Plaintiff immediately began to experience the smell of smoke, vaping fumes and chemical odors entering his unit. Plaintiff sent repeated emails to Defendants documenting burning eyes, dizziness, nausea, heart irregularities, blood-pressure spikes, headaches, breathing difficulty, and ringing in his ears. He also began to experience near constant floor and wall vibrations emanating from Unit 16. Rather than enforce the no smoking policy or abate the nuisance, Defendants offered to transfer Plaintiff to an alternative unit that was less desirable, as it would have required him to go up three flights of stairs. Plaintiff alleges that it was reasonably foreseeable to Defendants that if they did not abate the nuisance of enforcing the nonsmoking policy, Plaintiff would be forced to vacate his rent-controlled home. Plaintiff was ultimately forced to vacate to protect his health and well-being. Plaintiff asserts causes of action for constructive eviction, breach of the implied warranty of habitability, nuisance, breach of the covenant of quiet enjoyment, negligence, breach of contract, violation of Larkspur Municipal Code Section 6.30.030 et seq., and violation of Civil Code Section 1950.5.

**II. Procedural Deficiency**